IN THE DISTRICT COURT HELD AT ASHAIMAN ON WEDNESDAY THE 31ST DAY OF JULY, 2025, BEFORE HIS WORSHIP DERICK PARDEN ESHUN (ESQ): THE DISTRICT MAGISTRATE

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BETWEEN: SUIT NO. A11/128/2023

GIFTY ABENA TSYOKPLO PLAINTIFF

AND

DESMOND MESSAN DEFENDANT

**JUDGMENT**

By a writ of summons filed by the plaintiff against the defendant on the 13th day of July, 2023 the plaintiff sought the following reliefs:

a. Plaintiff claims from the defendant for the recovery of Gh₵13,000.00 being her Ford Escape car with registration number GN-1805-Z defendant bought and has refused to pay since November, 2021 despite repeated demands.
b. Interest on the sum supra.

As I proceed to consider the facts and issues raised in this case, it is appropriate for me to state that it is trite law that for every case there is a burden of proof to be discharged and the party who bears the burden will be determined by the nature and circumstances of the case; See **SECTIONS 10- 17 OF OUR EVIDENCE ACT, 1975 (NRCD 323)**. In **ABABIO V AKWASI (III) [1994-95] GBR, PART (II), 74** the court stated that a party whose pleadings raise an issue essential to the success of the case assumes the burden of proving such issue. Reference is also made to the cases of **TAKORADI FLOOR MILLS V SAMIR FARIS [2005-06] SCGLR, 882** and **RE ASHALLEY BOTWE LANDS: ADJETEY AGBOSU & ORS V KOTEY & ORS [2003-04] SCGLR,** 420 which further elucidate the burden of proof as statutorily provided. The rule is that in a trial of a case like the instant one, a party wins on the

preponderance of probabilities. See **Section 12(2) of the Evidence Act, 1975 (NRCD 323).** See also **ADWUBENG VRS DOMFEH (1996-97) SCGLR 660.**

**THE CASE FOR THE PLAINTIFF**

The plaintiff testified but did not call any witness in support of her case. The plaintiff's case as gathered from her pleadings and witness statement is that the Ford in issue was in good condition but was not using same. She decided to sell same whereupon the defendant expressed interest. She avers that they bargained for the price and agreed on the sum of Gh₵13,000.00 as the purchase price. She avers that defendant promised to pay the price within sometime. According to the plaintiff she delivered the car to the defendant and retained the documents to herself until the payment of the price. Plaintiff avers that despite repeated demands the defendant refused to pay the price. She then instituted the present action.

**THE CASE OF THE DEFENDANT**

The defendant testified but did not call any witness in support of his case. He avers that plaintiff offered to sell the car at a price of Gh₵13,000.00 whereupon he gave a counter offer of Gh₵10,000.00.

**ISSUE FOR DETERMINATION**

At the close of the case by the parties the following issue arose for the determination by the court:

- ✓ Whether or not the plaintiff is entitled to recover the sum of Gh₵13,000.00 being the purchase price of the car in issue?

There is ample evidence on record to the effect that the plaintiff offered to sell her car at a price of Gh₵13,000.00 whereupon the defendant gave a counter- offer of Gh₵10,000.00. It is trite that in the law of contract a counter offer amounts to a

rejection of the original offer and simultaneously proposes a new offer. Thus the original offer is no longer valid and cannot be accepted by the initial offeror. The party who made the counter-offer now becomes the offeror, and the original offeror becomes the offeree, the power to accept, reject, or further counter the new proposal. In the instant case the defendant became the offeror when he made a counter-offer of Gh₵10,000.00. The plaintiff who became the offeree rejected this offer of defendant in no uncertain terms. When the matter appeared before the police the defendant offered to pay the sum of GH₵5000.00 to the plaintiff as part payment of the price but same was rejected by the latter. In the circumstance of this case the defendant ought to have returned the car when the plaintiff rejected his offer. The record shows that the car has been in the custody of the defendant since November, 2021 till date. By the conduct of the defendant he is deemed to have accepted the original offer of the plaintiff of Gh₵13,000.00 as the purchase price of the car. Accordingly, the defendant cannot resile from the agreement. He is bound by the agreement. I am satisfied that the plaintiff has been able to establish her case on the balance of probabilities. In the instant case the probabilities preponderate in favour of the plaintiff. In essence, I hereby enter judgment for the plaintiff to recover the sum of Gh₵13,000.00 with interest at the prevailing lending rate of Ghana Commercial Bank effective November, 2021 till the final date of payment of the judgment debt. Plaintiff's cots assessed at Gh₵3,000.00.

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**(DERICK PARDEN ESHUN)**